

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. PROCEDURAL VIOLATIONS

A. PLAINTIFF’S DELAY IN SERVING THE DECLARATION OF BENJAMIN FUCHS

Ford avers that the court should disregard Plaintiff’s opposition and grant its MSA because Plaintiff failed to serve the Declaration of Benjamin Fuchs with his opposition. While Plaintiff timely served Ford with his unredacted opposition on July 17, 2026, Plaintiff did not serve the accompanying declaration until close of business on July 20, 2026. (Declaration of Hailey M. Rogerson, Exhs. A-B). Ford claims that it was unduly prejudiced because it was required to review over 400 pages of documents over four business days. The court notes, however, that Plaintiff’s counsel stated in his email containing the opposition that the exhibits to his declaration were “the standard *O’Connor* exhibits. . . so no surprises there.” (*Id.* at Exh. A). Ford contends in its reply that Mr. Fuchs’s declaration contains statements and evidence nearly identical to a supporting declaration in another matter, *John J. Whitney v. Ford*, a Santa Clara County Superior Court case bearing the case number 24CV436492. (Reply, p. 5:16-21).

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.”]). However, the defendant is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

B. REQUEST FOR JUDICIAL NOTICE

Plaintiff’s request for judicial notice of ten Technical Service Bulletins (“TSBs”) published on the website of the National Highway Traffic Safety Administration (“NHTSA”) is denied. Plaintiff does not cite authority permitting the court to take judicial notice of the truth of the TSBs’ contents. Plaintiff’s citation to *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606 is inapposite because, there, the appellate court took judicial notice of a website showing the Department of Transportation’s structure and definition of “mass transportation.” The TSBs are information reported by Ford; the contents do not represent an “official act” of the NHTSA nor are they not reasonably subject to dispute. (See *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn.

10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”]; see also *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193 [taking judicial notice of existence, but not contents of webpage]]. While the court may take judicial notice of the fact that the TSBs were published on NHTSA’s website, the court cannot take judicial notice of the hearsay statements therein.

C. EVIDENTIARY OBJECTIONS

Ford submitted 40 evidentiary objections to the Declaration of Benjamin Fuchs. Mr. Fuchs’s declaration consists of his interpretation of Ford’s internal documents and TSBs, which are offered to establish Ford’s knowledge of the Transmission Defect in its F-150s, including the Subject Vehicle. Ford’s objections are limited to Mr. Fuchs’s interpretation and conclusions concerning these documents, rather than the documents themselves. Ford’s first objection to Mr. Fuchs’s declaration that recites the allegation of the Complaint is sustained. Plaintiff may not rely on his own allegations within the pleadings to oppose a motion for summary judgment. (*Cali Public Records Research, Inc. v. County of Yolo* (2016) 4 Cal.App.5th 150, 182). Ford’s remaining objections are sustained as Mr. Fuchs has not established his personal knowledge or foundation for his opinions or interpretations of the appended exhibits.

IV. ANALYSIS

Ford moves for MSA of Plaintiff’s fifth cause of action for fraudulent inducement-concealment on two grounds: (1) Plaintiff has no evidence that he made presentations, concerns, or repairs related to the Subject Vehicle’s transmission; and (2) Plaintiff has no evidence that Ford knew of and concealed the defect.

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). “[A] defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, italics original). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

Ford’s first argument that Plaintiff has no evidence demonstrating the existence of a transmission defect is unpersuasive. For purposes of establishing fraud, the fact that a product is still functioning as intended is immaterial because a fraud claim impugns the defendant’s conduct, not the safety or efficacy of the product. (*Khan v. Shiley* (1990) 217 Cal.App.3d 848, 857). Thus, “a manufacturer of a product may be liable for fraud when it conceals material product information from potential users.” (*Id.* at p. 858).

Ford next argues that Plaintiff has no evidence of its knowledge of the Transmission Defect and offers Plaintiff’s discovery responses in support.

On March 3, 2026, Plaintiff responded to Ford’s special interrogatories, which required Plaintiff to “state all facts”, “identify all persons”, and “identify all documents” supporting his fraudulent concealment claim. (Ford’s Separate Statement of Undisputed Material Facts [“SSUMF”], Nos. 19-21). Plaintiff responded by referencing his allegations within the Complaint, his 45-page document production, and vaguely referring to Ford’s “agents, representatives, and employees[.]”. (Declaration of Katherine P. Vilchez, Exh. H, pp. 18-22). The 45-page document production consists of the sales contract for the Subject Vehicle, various repair orders and invoices, the vehicle registration, Plaintiff’s proof of insurance, title to the Subject Vehicle, and an April 2025 letter notifying Plaintiff of needed brake repairs. (*Id.*, at Exh. I). Neither Plaintiff’s discovery responses nor the document

production proves the necessary elements to support a claim for fraudulent inducement-concealment. Ford therefore meets its initial burden.

In opposition, Plaintiff fails to meet his burden of demonstrating a triable issue of material fact. Plaintiff relies on the TSBs to demonstrate Ford’s prior knowledge of the Transmission Defects. As noted above, however, the TSBs are not proper matters for judicial notice and “[a] TSB is not and cannot fairly be construed by a trial court as an admission of a design or other defect, because TSBs are routinely issued to dealers to help diagnose and repair typical complaints.” (*American Honda Motor Co., Inc. v. Super. Ct.* (2011) 199 Cal.App.4th 1367, 1378). Plaintiff also relies on the Declaration of Benjamin Fuchs and counsel’s interpretation of the appended exhibits, but the court has sustained Ford’s objections to Mr. Fuchs’s characterization of the documents.

The exhibits attached to Mr. Fuchs’s declaration, on their face, do not establish that Ford knew of the shifting issues that purportedly affected Plaintiff’s 2018 F-150 with a 10R80 transmission. Many of the exhibits consist of communications and documents that predate or postdate Plaintiff’s March 2018 purchase of the F-150 or concern vehicles that do not have the Subject Vehicle’s 10R80 transmission. (See e.g., Declaration of Benjamin Fuchs, Exhs. 4-8, 10-13, 16-18). Indeed, some of the exhibits do not even identify the year, model, or transmission of the vehicles. (See e.g., *Id.* at Exhs. 5-8, 12-15, 24-25; *id.* at Exh. 9 [noting change to seals at an unspecified date solved cold leakage issues]). While an email dated September 20, 2018 stated that harsh shifting was a number one issue in F-150s that began in 2017 and continued to 2018, the September 2017 correspondence does not indicate that the harsh shifting was attributable to issues identified in earlier correspondence. (*Id.* at Exh. 21). Plaintiff does not identify any exhibit that, when taken together, demonstrates Ford knew of the Transmission Defect in 2018 F-150s before Plaintiff purchased the Subject Vehicle in March 2018. (*Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”]; *Sharabianlou v. Karp* (2010) 181 Cal.App.4th 1133, 1149 [“we will not scour the record on our own in search of supporting evidence”]).

Given the foregoing, the court Ford’s motion for summary adjudication of the fifth cause of action for fraudulent concealment – inducement.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Ford’s MSA of the fifth cause of action for fraudulent concealment-inducement. The Court will prepare the Order.

Calendar Line # 4

Case Name Discovery Bank vs Andrew Little

Case No. 25CV463796

Motion to Vacate Judgment and Enter Dismissal

I. BACKGROUND

This credit card collection case stems from Discovery Bank (“Bank”)’s Complaint filed on April 18, 2025 alleging a single causes of action for breach of contract against Defendant Andrew Little (“Little”). On June 17, 2025, a basic entry of default was entered against the Defendant Little. On November 14, 2025, the Honorable Beth McGowen authorized a default judgment in favor of the Bank in the amount of \$8,536.79 against Defendant Little.

On March 12, 2026, Plaintiff Bank filed this motion to vacate judgment and enter dismissal of the case. The motion was accompanied by a proof of service indicating mail service.